

Prahlad vs Smt Meera on 5 January, 2011

Author: Prem Shanker Asopa

Bench: Prem Shanker Asopa

IN THE HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JAIPUR BENCH JAIPUR

ORDER

S.B.CIVIL WRIT PETITION NO.17207/2010
Prahlad son of Mangilal
Versus
Smt.Meera w/o Prahlad

DATE OF ORDER --- January 05,2011

PRESENT

HONBLE MR.JUSTICE PREM SHANKER ASOPA

Mr.Tarun Jain, for the petitioner

BY THE COURT

(1) Heard learned counsel for the petitioner-husband.

(2) This writ petition is directed against the order dated 24.11.2010 (Anx.3) passed by the District Judge, Tonk in HMA No.44/2010 on the application u/s 24, Hindu Marriage Act, 1955, (in short 'the Act of 1955') whereby the interim maintenance of Rs.2,000/- per month has been granted to the respondent-wife from the date of filing the application, with the further direction that the maintenance granted u/s 125 Cr.P.C. shall be adjusted.

(3) Submission of counsel for the petitioner-husband is that the maintenance was to be awarded from the date of order and not from the date of application and further, the court below ought not to have granted interim maintenance u/s 24 of the Act of 1955 in view of the fact that the wife is already getting maintenance u/s 125 Cr.P.C. Counsel further submits that the interim maintenance of Rs.2,000/- per month is excessive.

(4) I have gone through record of the writ petition and further considered the aforesaid submissions.

(5) From a perusal of the impugned order dated 24.11.2010 , it is revealed that the petitioner husband is working as a Patwari and he has not disclosed his annual income before the court below. Considering the fact of employment of the petitioner-husband as Patwari as well as the consideration of all the facts and circumstances available on record, the interim maintenance of Rs.2,000/- per month is reasonable.

(6) The law is well settled on the issue that the interim maintenance u/s 24 of the Act of 1955 is to be granted from the date of filing the application and not from the date of passing order thereon. The court below has committed no error in giving direction for adjustment of the maintenance already ordered u/s 125 Cr.P.C.

(7) The writ petition under Article 227 of the Constitution of India is dismissed.

(Prem Shanker Asopa) J.

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